

23STCV23934 23STCV23934

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Case Number: 23STCV23934 Hearing Date: September 15, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

RAYMOND HOOKER,

Plaintiff,

vs.

GENERAL MOTORS LLC,

Defendant.

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CASE NO.: 23STCV23934

[TENTATIVE] ORDER GRANTING IN PART PLAINTIFF'S
MOTION FOR ATTORNEY FEES, COSTS, AND EXPENSES

Dept. 506

8:30 a.m.

September 15, 2026

Plaintiff

Raymond Hooker and Defendant General Motors LLC have reached a settlement in this Song-Beverly action. On February 2, 2026, Plaintiff filed a motion for attorney fees costs.

DISCUSSION

As

the prevailing party, Plaintiff is entitled to an award of reasonable attorney fees and expenses. (Civ. Code, § 1794, subd. (d).) Plaintiff requests a total of \$40,470.16.

A. Attorney Fees

California

courts apply the “lodestar” approach to determine what attorney fees are reasonable. (See, e.g., *Holguin v. DISH Network LLC* (2014) 229 Cal.App.4th 1310, 1332.) This inquiry “begins with the ‘lodestar,’ i.e., the number of hours reasonably expended

multiplied by the reasonable hourly rate.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) From there, the “lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (Ibid.) Relevant factors include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) The party seeking fees has the burden of documenting the appropriate hours expended and hourly rates. (City of Colton v. Singletary (2012) 206 Cal.App.4th 751, 784.)

The billing records reflect \$35,475.00 for 78.6 hours of work performed, including work on this motion. (See Mizrahi Decl., Ex. B.) Counsel’s rates are generally reasonable for experienced attorneys in Los Angeles specializing in these types of cases. But because they are experienced with Song-Beverly litigation, they should be more efficient in those types of cases than less experienced attorneys.

The billing records reflect inefficiencies in the number of hours for certain tasks, such as drafting boilerplate discovery requests and motions. The Court has seen many similar actions, and the complaints, discovery issues, and fee motions are similar. Therefore, less time is needed to draft these documents, and some deduction is warranted. Deductions are also warranted for work solely dedicated to the fraud claims and the UCL claim, which do not provide for attorney fees. (See Opposition at pp. 4-11.)

Plaintiff requests an additional lodestar multiplier of 0.1. “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation.” (Ketchum, supra, 24 Cal.4th at p. 1139.) This matter was not noticeably different from other lemon law cases, did not involve complex or novel legal issues warranting a multiplier, and Plaintiff’s counsel has extensive experience litigating similar matters. Despite the length of time from

case inception to settlement, there are no indications that Plaintiff's counsel engaged in any actions different from a typical strategy to achieve this result.

The

Court declines to add a positive multiplier. Instead, the Court will apply a negative multiplier of 0.8 (20% reduction) due to the inefficiencies caused by excessive billing for boilerplate items. (Cash v. County of Los Angeles (2025) 111 Cal.App.5th 741, 749.)

Considering

the type of case, complexity of the case, length of litigation, and the record as a whole, the Court concludes that a reasonable amount of attorney fees is \$28,380.00 (\$35,475.00 billed minus \$7,095.00).

B. Costs and Expenses

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prevailing plaintiff in a Song-Beverly action may recover all "costs and expenses . . . determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Code Civ. Proc., § 1794, subd. (d).) "[I]t is clear the Legislature intended the word 'expenses' to cover items not included in the detailed statutory definition of 'costs.'" (Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137.)

Plaintiff

seeks \$1,447.66 in costs and expenses. Defendant identifies specific costs that are attributed to the fraud claims, a discovery motion where Plaintiff failed to meet and confer, costs without detail, and jury food and lodging in a case that did not go to a jury. (Opposition at pp. 12-13.) The Court therefore finds that Plaintiff's reasonable costs and expenses are \$911.66 (\$1,447.66 minus \$536.00).

CONCLUSION

The

motion for attorney fees and costs is GRANTED IN PART. The Court awards Plaintiff \$28,380.00 in attorney fees and \$911.66 in costs and expenses.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 15th day of September 2026

Hon. Thomas D. Long

Judge of the Superior
Court